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★ MAR 15 2011 ★

 **ORIGINAL**

UNITED STATES DISTRICT COURT
EASTERN DISTRICT OF NEW YORK

BROOKLYN OFFICE

THOMAS NUNEZ,

Plaintiff, **CV 11 - 1233**
COMPLAINT

-against-

THE CITY OF NEW YORK, POLICE OFFICER
MICHAEL ALFIERI, tax # 942938, POLICE OFFICER
DMITRIY ZABROVSKIY, tax # 942922, DETECTIVE
KARL ECKERT, tax # 922297,

Jury Trial Demanded

DEARIE, CH. J

Defendants.

CARTER, M.J.

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PRELIMINARY STATEMENT

1. Plaintiff bring this civil rights action against the City of New York and three New York City Police Officers of the 120th Precinct in Staten Island alleging that defendants violated his rights under 42 U.S.C. § 1983, the Fourth Amendment to the United States Constitution and New York state law by falsely arresting him and using excessive force on him on January 27, 2011. The Richmond County District Attorney's Office declined to prosecute plaintiff and the charges were dismissed. Plaintiff seeks compensatory and punitive damages, attorney's fees and costs and such other and further relief as the court deems just and proper.

JURISDICTION & VENUE

2. This action is brought pursuant to 42 U.S.C. § 1983 and the Fourth Amendment to the United States Constitution. Jurisdiction is conferred upon this Court by 28 U.S.C. §§ 1331 and 1343.

3. Plaintiff invoke the supplemental jurisdiction of this Court pursuant to 28 U.S.C. § 1367 to hear and decide his New York state law claims of false arrest, assault and battery which form part of the same case and controversy as his federal claims under Article III of the United States Constitution.

4. With respect to plaintiff's state law claims, a notice of claim was duly filed with the City of New York within 30 days of the incident at issue, more than 30 days have elapsed since such filing and the City has not offered to settle plaintiff's state law claims.

5. Venue is proper in the Eastern District of New York pursuant to 28 U.S.C. § 1391(b) and (c) because a substantial part of the events giving rise to plaintiff's claims occurred in this District and because some or all of the defendants reside in this District.

PARTIES

6. Plaintiff is a United States citizen who resides in Brooklyn.

7. The City of New York is a municipal corporation organized under the laws of the State of New York.

8. Police Officers Michael Alfieri and Dmitriy Zabrovskiy are New York City Police Officers employed in the 120th Precinct. Detective Karl Eckert is employed in the auto crimes unit. Defendants were acting under color of state law and in their capacities as New York City Police Officers at all relevant times. Defendants are liable for directly participating in the unlawful acts described herein and for failing to intervene to protect plaintiff from unconstitutional conduct. The defendants are sued in their individual capacities.

STATEMENT OF FACTS

9. Plaintiff is employed as a tow truck driver for a towing company in Staten Island.

10. During the evening of January 27, 2011, after receiving a tow request from a representative from West Shore Plaza in Staten Island, plaintiff towed a vehicle that was parked in the plaza's fire lane.

11. In accordance with the law, plaintiff, after towing the car, went to the 122nd Precinct, logged in, and reported in writing that he had towed a vehicle and he described the physical condition of the car.

12. Plaintiff then drove his truck and the towed vehicle to Redemption Yard, located at 14 Prospect Street.

13. Police Officers Michael Alfieri and Dmitriy Zabrovskiy arrested plaintiff in front of Redemption Yard on the pretext that plaintiff had committed various crimes by towing the car, including Grand Larceny, a felony.

14. At all relevant times, plaintiff had not committed a crime or violation, he was not wanted for a crime or violation and he had not acted in a suspicious manner.

15. In the course of arresting plaintiff, Officer Alfieri unnecessarily pushed the unresisting and compliant plaintiff several times, twisted his arms and handcuffed him excessively tight, causing pain and injury.

16. Officer Zabrovskiy watched Alfieri use excessive force on plaintiff but he failed to intervene on plaintiff's behalf.

17. The two officers brought plaintiff to the 120th Precinct and put him in cell.

18. At the 120th Precinct, plaintiff was questioned about the incident by Detective Karl Eckert of the auto crimes unit.

19. Although Detective Eckert, a high-ranking officer, determined that plaintiff had not committed a crime, he failed to intervene on plaintiff's behalf.

20. While plaintiff was held in the precinct, Officer Alfieri misrepresented in police reports and told the Richmond County District Attorney's Office that plaintiff had committed several crimes by towing the vehicle, including Grand Larceny.

21. The other defendants knew that Officer Alfieri was making false allegations about plaintiff but they failed to intervene to protect plaintiff by, for example, reporting the matter to a supervisor or to the District Attorney's Office.

23. On January 28, 2011, at approximately 4:00 p.m., plaintiff was released from custody because the Richmond County District Attorney's Office declined to prosecute him.

24. Plaintiff suffered damage as a result of defendants' actions. Plaintiff was incarcerated for approximately 19 hours and suffered pain, physical injuries, emotional distress, fear, anxiety and damage to his reputation as a tow truck operator.

FIRST CLAIM

(FALSE ARREST UNDER FEDERAL LAW)

25. Plaintiff repeats the foregoing allegations.

26. At all relevant times, plaintiff had not committed a crime or violation, he was not wanted for a crime or violation and he had not acted in a suspicious manner.

27. Despite plaintiff's innocence, the defendants arrested plaintiff or failed to intervene to prevent his false arrest

28. Accordingly, defendants are liable to plaintiff under the Fourth Amendment for false arrest.

SECOND CLAIM

(FALSE ARREST UNDER STATE LAW)

29. Plaintiff repeats the foregoing allegations.
30. At all relevant times, plaintiff had not committed a crime or violation, he was not wanted for a crime or violation and he had not acted in a suspicious manner.
31. Despite plaintiff's innocence, the defendants arrested plaintiff or failed to intervene to prevent his false arrest.
32. Accordingly, defendants are liable to plaintiff under New York state law for false arrest.

THIRD CLAIM

(UNREASONABLE FORCE UNDER FEDERAL LAW)

33. Plaintiff repeats the foregoing allegations.
34. Defendants' use of force upon plaintiff or failure to intervene to prevent the force, as described herein, was objectively unreasonable and caused plaintiff pain and injury.
35. Accordingly, defendants are liable to plaintiff under the Fourth Amendment for using unreasonable force.

FOURTH CLAIM

(ASSAULT UNDER STATE LAW)

36. Plaintiff repeats the foregoing allegations.
37. Defendants' use of force upon, handcuffing and search of plaintiff placed plaintiff in fear of imminent harmful and offensive physical contacts which injured him.
38. Accordingly, defendants are liable to plaintiff under New York state law for assault.

FIFTH CLAIM

(BATTERY UNDER STATE LAW)

39. Plaintiff repeats the foregoing allegations.

40. Defendants' use of force upon, handcuffing and search of plaintiff were offensive and nonconsensual physical contacts which injured him.

41. Accordingly, defendants are liable to plaintiff under New York state law for battery.

SIXTH CLAIM

(STATE LAW RESPONDEAT SUPERIOR CLAIM AGAINST CITY OF NEW YORK)

42. Plaintiff repeats the foregoing allegations.

43. Defendants were acting within the scope of their employment as New York City Police Officers when they falsely arrested, assaulted and battered plaintiff.

44. The City of New York is therefore vicariously liable to plaintiff under New York state law for false arrest, assault and battery.

SEVENTH CLAIM

(*MONELL* CLAIM AGAINST THE CITY OF NEW YORK)

45. Plaintiff repeats the foregoing allegations.

46. The City of New York is a "person" within the meaning of 42 U.S.C. § 1983.

47. The City of New York, through a policy, practice or custom, directly caused the constitutional violations suffered by plaintiff.

48. Upon information and belief, the City of New York, at all relevant times, was aware that the defendants and other members of the NYPD are unfit officers who have

previously committed acts similar to those alleged herein, have a propensity for unconstitutional conduct and/or have been inadequately trained.

49. Several members of the NYPD have been convicted of crimes for engaging in corruption and for making false allegations.

50. Former NYPD Commissioner Bernard Kerik was convicted of corruption-related crimes in federal and state court and served time in federal prison.

51. In *Colon v. City of New York*, Nos. 09 CV 8, 09 CV 9 (JBW), 2009 WL 4263362 (E.D.N.Y. November 25, 2009), the court stated that an “[in]formal inquiry by the court and among the judges of this court, as well as knowledge of cases in other federal and state courts, has revealed anecdotal evidence of repeated, widespread falsification by arresting police officers of the New York City Police Department.”

52. Despite the above, the City exercised deliberate indifference by failing to take remedial action. The City failed to properly train, retrain, supervise, discipline, and monitor the defendants and other officers like them and improperly retained and utilized them.

53. The City’s failure to act resulted in the violation of plaintiff’s constitutional rights as described herein.

WHEREFORE, plaintiff demands a jury trial and the following relief jointly and severally against the defendants:

- a. Compensatory damages in an amount to be determined by a jury;
- b. Punitive damages in an amount to be determined by a jury;
- c. Attorney’s fees and costs;
- d. Such other and further relief as the Court may deem just and proper.

DATED: March 14, 2011



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